



Appeal Decision

Site visit made on 9 July 2026

by Elizabeth Lawrence BTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 1 September 2026

Appeal Ref: 6006832

Land at Marazanvose, St Allen, TR4 9DH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by C P Mikulla Ltd against the decision of Cornwall Council.
 - The application Ref is PA25/02427.
 - The development proposed is described as change of use of land from temporary use of land for the stationing of caravans to use of the land for Holiday Lodges.
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Decision

1. The appeal is dismissed.

Main Issue

2. The main issue is whether the appeal site is in a suitable location for holiday lodges, with adequate access to facilities and services; and the effect of the proposal on the character and appearance of the surrounding rural area.

Preliminary matter

3. Since the appeal application was refused the National Planning Policy Framework 2024 has been replaced by the National Planning Policy Framework Plan-making and national decision-making policies August 2026, (Framework). Both the council and the appellant have been provided with the opportunity to comment on the relevance of the new Framework to the proposal and their comments have been taken into consideration. For the avoidance of any doubt, I confirm that in this decision I have referred to the 2026 Framework.

Background

4. The council has advised that the appeal site comprises one of nine compounds identified in the A30 Chiverton to Carlan Cross Development Consent Order 2020 (DCO), as having temporary consent as part of the major Highways England A30 upgrading. The site was granted a license under the Highways Act for use as a temporary caravan site for workers of the A30 roadworks. In addition, the council has advised that the appeal site is subject to a Construction Environmental Management Plan (CEMP), which should be converted to a Handover Environmental Management Plan (HEMP) following the completion of the authorised development. Thereafter the site should be maintained in accordance with the approved HEMP.

5. Part 5 section 33 (4) of the DCO states that before giving up possession of the temporary sites the undertaker must remove all temporary works and restore the land to the reasonable satisfaction of the owners. This ties in with section 33 (1) (c) of the DCO which allows the undertaker to construct temporary works (including the provision of means of access) and buildings on that land.
6. Very few details have been submitted regarding the CEMP and HEMP. However, the submitted Landscape and Ecology Design Sheet 31 of 32 provides details of the post development uses and landscaping. This plan was last updated in 2022 and appears to incorrectly show the boundaries of the site. The northerly boundary of the site, as shown on the landscape plan, follows the line of the existing pylons rather than the boundary of the site. Notwithstanding this, the plan supports the submitted evidence that following the completion of the highway works the temporary use of the site would cease, the associated infrastructure would be removed and the land would be restored to open grassland.

Reasons

7. From the evidence submitted it would appear that when the appeal planning application was submitted the appeal site was still in use as a temporary caravan site for workers and employees associated with the A30 upgrading. At the time of my appeal site visit this use had ceased and the workers caravans had been removed from the site. Much of the site was overgrown although some of the infrastructure associated with the temporary use was still on the site. This included the crossover, internal vehicular accesses and hard-standings, a single cabin and associated power/water supply connections.
8. Whilst the site was developed lawfully under the DCO and presumably the temporary caravan site license, the caravans were not permanent structures and both the use and associated access and infrastructure was for a temporary period only and thus not permanent.
9. The planning history for the site set out in the appellants Design, Accessibility & Planning Appraisal refers to the change of use of the land to equestrian and the construction of various associated structures. The permissions date back to 2009, although no evidence regarding the precise location and extent of the land associated with the permissions has been submitted. The appellant does not state what the use of the land was when the Consent Order was made and from the evidence submitted the land is to be restored to open grassland as an integral part of the DCO. No evidence has been submitted to demonstrate that any former equestrian buildings or infrastructure would be reinstated as part of the DCO.
10. For these reasons and on the basis of the evidence submitted I find that any existing structures and infrastructure associated with the temporary use or former equestrian use fall outside the definition of previously developed land as set out in the Framework.
11. The appeal site is situated in the open countryside and within character area 19 as set out in the Cornwall Landscape Character Study 2023 (CLCS). The area is described as sparsely settled and served by a network of rural lanes and the strategic road network. The area has an intact agricultural character which includes mixed farmland within medieval fields enclosed by Cornish hedges and areas. It is an area with a strong rural character where high levels of tranquillity

- can be experienced, although this is impacted in places by renewable energy schemes, major roads and overhead power lines. It is also an area where tourism is less of an influence on the landscape compared with other parts of Cornwall. The CLCS identifies the area's valued landscape attributes and key sensitivities as including its intact medieval field pattern; the intact rural working nature of the landscape; sparsely settled character; and increased visitor pressure on recreational sites with potential adverse effects on wildlife and tranquility.
12. Immediately to the northwest the appeal site borders character area CCA17. Regarding this area the CLCS similarly refers to a mix of medieval and post medieval enclosures and Cornish hedges. Inland it includes a dispersed pattern of medieval farmsteads, miners smallholdings and post medieval farms on late-enclosed plots. Tourist accommodation is located closer to the coastal areas.
 13. The purpose of the current Cornwall Landscape Character Study 2023 (CLCS), is to guide planning policy, manage environmental change and protect the regions unique natural beauty.
 14. Although the appeal site does not lie within a designated Area of Great Landscape Value (AGLV), it is sited adjacent to a candidate AGLV (St Agnes Coombes). The AGLV's Review description of the area is consistent with that of the CLCS. CLP Policy 23 seeks to ensure that proposals are of an appropriate scale, mass and design that recognises and respects landscape character of both designated and un-designated landscapes. Development must take into account and respect the sensitivity and capacity of the landscape asset, considering cumulative impact and dark skies and tranquillity in areas that are relatively undisturbed using guidance from the CLCS.
 15. The appeal site comprises an enclosed field that appeared as two fields on the 1841 Tithe map. It is enclosed by traditional Cornish hedges and trees and is on land that rises gently away from the B3288. The appeal site is bisected by a pylon route and is currently occupied by a moveable cabin and various other works associated with the temporary highway works compound. Due to its boundary screening and the undulating topography of the landscape views out of the site are largely restricted to the lane adjacent to the entrance to the site, elevated areas and Marazanvose Green Bridge (MGB).
 16. The narrow rural lane the appeal site fronts onto is similarly visually enclosed by mature hedges and trees. The lane is however more open around the entrance to the MGB, which is located diagonally opposite the entrance to the appeal site. This recently constructed bridge provides a bridleway, footpath and green wildlife corridor over the B3288 and the A30. From it there are currently open views over the surrounding countryside and the roads beneath it.
 17. The appeal site sits alongside the small linear hamlet of Marazanvose which has medieval origins and fronts onto the B3288, with the A30 just beyond. The A30 is an historic route that follows Cornwall's spine. Apart from the developments and infrastructure referred to above the site is surrounded by modest sized and often irregular shaped enclosed fields that are primarily used for arable and pasture land and woodland.
 18. A short distance to the north and northwest of the appeal site is a cluster of rural grade II listed buildings and grade II parkland. This includes Batter's Engine House

on the site of West Chiverton Mine, Ventongimps Farmhouse, Nancarrow Farm and Chyverton Park and Garden, which is Grade II listed and includes several listed buildings within its grounds. As stated in the appellant's heritage statement the chimney at Batter's Engine House and the woodland around Chyverton Park can be glimpsed from the appeal site. There is no intervisibility between the appeal site and any of Chyverton Park's listed buildings. On the opposite side of the A30, Nancarrow Farmhouse is Grade II listed.

19. The close proximity of these listed buildings and park to each other and their historic landscape contribute to their individual and communal evidential, historical, aesthetic and communal values and thus to their overall significance. Due to the distances involved, together with the enclosed and undulating nature of the area, the proposal would not impact on these designated heritage assets and their settings. As such, I share the view of the council that the proposal would not have an adverse impact on these heritage assets or their setting. Therefore, the balancing exercise set out in policy HE6 of the Framework is not engaged.
20. Policy S3 of the Framework sets out a presumption in favour of sustainable development and states that outside settlements policy S5 should be applied. Also, that in all locations proposals that accord with an up-to-date development plan and the decision making policies in the Framework should be approved without delay. CLP Policy 1 is consistent with this.
21. The Council's settlement strategy is set out in CLP Policies 2 & 3. Together they state that new development should provide a sustainable approach to accommodating growth, providing a well balanced mix of economic, social and environmental benefits. It focusses on the main settlements and villages, outside which development should be delivered through sites identified in Neighbourhood Plans; the rounding off of settlements; and the development of previously developed land within or immediately adjoining settlements.
22. As the council does not have an identified five year supply of deliverable housing sites it has prepared an Interim Policy Position Statement. In relation to the proposals for housing it states that CLP Policy 2a and the locational aspects of CLP Policy 3 are out of date. Despite this, much of the wording Policy 3(3) and 3(4) and the supporting text help to provide a guide to suitable locations for growth. They reflect the locational requirements set out in Policies S 1 & S2 of the Framework. In dealing with this appeal, I have given very limited weight to development plan policies (or parts of those policies) which are materially inconsistent with the national decision-making policies in the Framework.
23. Whilst the proposal is specifically for the use of the land for holiday lodges, the appellant has pointed out that by definition the lodges are classed as dwellings. As such they should be assessed in accordance with housing policy, alongside tourism.
24. Policy S5 of the Framework addresses the principle of development outside settlements. Residential developments can be allowed in accordance with Policy S5 1. C, b, c, d, e, f, g, h, I & & j. Amongst other things Policy S5 e. f. h & J support limited residential infilling within groups of houses; residential developments which would be well connected to a station and of a scale that can be accommodated having regard to the availability of infrastructure. It also allows for developments that would address an evidenced unmet need, including where a planning authority

- cannot demonstrate a five year supply of deliverable housing sites or scores below 75% in the most recent Housing Delivery Test. This is subject to the site being physically well-related to an existing settlement (unless the nature of the development would make this inappropriate) and is of a scale which can be accommodated taking account of the existing availability of infrastructure.
25. Development proposals which do not fall within one of the categories set out in this policy should only be approved in exceptional circumstances, where the benefits would substantially outweigh the adverse effects, including the character of the countryside and in relation to promoting sustainable patterns of movement.
 26. Annex B of the Framework states that settlements do not include hamlets and scattered groups of houses located outside predominantly built-up areas, unless specifically defined as a settlement in the development plan. CLP Policy 3 addresses the role and function of places and allows for infilling and the rounding off of settlements. The supporting text to this policy (paragraph 168) refers to smaller hamlets and villages which have a form and shape and clearly defined boundaries and where infilling is allowed as settlements. It specifically excludes villages or hamlets that comprises a low density straggle of dwellings.
 27. Policy HO7 of the Framework states that in applying the policies in the Framework substantial weight should be given to the benefits of providing homes which contribute to meeting the evidenced accommodation needs of the community, as identified through needs assessments.
 28. Marazanvose comprises a low-density straggle of some 6/7 traditionally designed dwellings, with no shops, or other typical day-to-day community facilities. Despite its location adjacent to the A30 and B3288 the hamlet is not well connected to a settlement that provides a good range of facilities or a station. The dwellings front onto the B., which is a busy distributor route and there are no pavements or street lights. There appear to be very few day to day services within easy walking distance. Whilst there is a regular bus service, it finishes early in the evening and the services are fragmented at weekends. Most residents are likely to be reliant on private vehicles for access to day-to-day services and facilities.
 29. The appeal site is located at the end of the row of dwellings and projects into the open countryside on three sides. The proposal is for up to 50 lodges arranged in uniform rows, with the intensity of development increasing as it projects into the countryside. The cabins would occupy an area far greater than the existing dwellings and their residential curtilages. They would be physically separated from the built-up area of the hamlet by the proposed wildlife buffer.
 30. Having regard to the very modest size and role of the hamlet, due to its combined size, intensity and appearance the proposed development would overwhelm and be out of scale and context with the hamlet. It would insensitively extend the hamlet into the open countryside and would not be of an appropriate scale having regard to its poor accessibility by a range of transport modes.
 31. For these reasons in relation to housing the proposal falls outside the scope or fails to comply with Policies S5 e. f. h & j, HO7, HO8, HO9, HO10 & HO11 of the Framework and CLP Policy 3. It would similarly fall outside the scope of CLP Policy 7 which deals with specific forms of housing in the countryside.

32. Policy S5 b. of the Framework supports rural tourism developments where a location outside a settlement is shown to be necessary. Policy E4 of the Framework supports the sustainable growth of facilities to support tourism. Where proposals are located in places not well served by public transport they should take opportunities to use previously developed land and their siting and design should be appropriate having regard to the character of the surroundings.
33. CLP Policy 5 (3) supports new high quality sustainable tourist accommodation in rural areas where it would be of an appropriate scale to its location and to its accessibility by a range of transport modes. Proposals should provide a well balanced mix of economic, social and environmental benefits. This is consistent with CLP Objectives 2, 9 and 10.
34. A specific locational need for a holiday lodge site in this location has not been demonstrated. Whilst in principle holiday lodge sites are acceptable in the countryside, they are also subject to a raft of policies which seek to ensure that they are appropriately and sensitively located.
35. Policy TR3 of the Framework support sustainable patterns of movement, that enables good accessibility for different users and makes the most of existing and proposed transport infrastructure. The climate change principles set out in Policy C1 of the Cornwall Climate Emergency Development Plan Document 2023 (DPD), include using land efficiently, maximising the ability to make trips by public transport, sustainable and active modes of transport in all developments. Similarly, DPD Policy T1 expects new development to be located and designed in order to minimise the need to travel and to prioritise walking, then cycling and public transport.
36. Having regard to the nature of the proposed use and the rural location of the appeal site, most visitors would arrive at the site by car. The proposal does not include any on-site shops, catering or recreational facilities for guests. Marazanvose has no shops or other facilities and the closest larger hamlet/village to the appeal site is Zelah, which has a very limited range of facilities. Zelah is approximately 2 kilometres from the appeal site and is accessed via the B3288. This is a busy distributor road that has no pavements or street lights. It is a route that would be unattractive for walking or cycling for safety and environmental reasons.
37. I note that Zelah and a variety of destinations can be reached by a regular bus service along the B3288, although as stated above the services finish early in the evening and are more fragmented at weekends. It would not provide a quick and efficient service for holiday makers wanting to pick up a few groceries or take-away meals, etc.
38. The appeal site is located close to an event venue and a network of rural lane, footpaths and bridleways. Following the construction of the MGB this would be convenient for guests attending specific local functions or wanting to spend time walking or cycling around the surrounding countryside. Due to its central location and proximity to the A30 it would also be convenient for multi-destination day trips by holidaymakers. Also, some guests could use electric vehicles, which presumably could be recharged on the appeal site.
39. Notwithstanding this, there are few community and leisure services/facilities and tourist attractions within easy walking and cycling distance of the site. Having

regard to the number and capacity of the proposed lodges and the likely varied reasons for staying at the site, the occupiers of the proposed lodges would be largely reliant on private vehicles to access services and facilities and various leisure and tourist attractions. For these reasons the proposal would exacerbate the reliance on private vehicles, resulting in environmental harm through increased vehicle journeys and carbon emissions.

40. For these reasons, although the proposal makes the most of existing and proposed transport infrastructure, it would not enable good accessibility for different users. It would conflict with policies S5, E4a and DP3 of the Framework, CLP Policy 5 and objectives 2, 9 & 10.
41. Regarding design Policy DP3 of the Framework states that development proposals should respond their context so that they integrate with and enhance their surroundings. They should support integrated communities; help mitigate and adapt to climate change; incorporate and connect to green infrastructure; prioritise walking, wheeling, cycling and public transport; and establish or maintain a strong sense of place and pride. Substantial weight should be given to compliance with relevant development plan policies when assessing the design quality of proposals. Proposals should be refused if, without clear justification, they conflict with paragraph 1 or relevant aspects of paragraph 2 of Policy DP3.
42. Together and amongst other things CLP Policies 2 and 12 require a sustainable approach to design. Proposals should promote local distinctiveness, demonstrating a clear understanding of its landscape setting and layouts should respect and work with the natural and historic environment. Proposals that improve conditions for business and investment in Cornwall are welcomed, in particular where they support employment schemes in rural areas, giving particular emphasis to quality, permanent work opportunities that break the seasonable labour cycles. The Cornwall Design Guide provides further advice.
43. Policy N2 of the Framework requires proposals to consider the environmental qualities of sites, including habitats, landscape character and the natural beauty of the landscape. They should conserve natural features of visual, historic or nature conservation value and use appropriate landscaping to help create well-designed places and integrate the development into its surroundings. Trees, hedges and other biodiversity enhancements are encouraged.
44. At the time of my site visit the existing infrastructure associated with the temporary caravan site was largely screened by boundary planting and the topography of the appeal site when viewed from the B3288 and the adjacent lane. From the entrance to the appeal site part of the appeal site was clearly visible. Diagonally opposite the appeal site entrance is the newly constructed MGB. Currently there are open views over the appeal site from this bridge.
45. From the site entrance and the bridge the existing infrastructure has an uncharacteristic urbanising and degrading impact on the appeal site, the character and appearance of the narrow lane and the surrounding countryside. It encroaches into the open countryside where it appears totally out of context and has a negative impact on the expansive countryside views. This includes views towards the upper part of Batter's Engine House and Chyverton Park.
46. Due to their mass and height the proposed cabins would be visible over a wider area. Despite their timber walls and tiled roofs they would appear totally out of

context with the adjoining informal and spacious linear hamlet and the surrounding countryside. Visitor's cars, the use of outside sitting areas and the coming and going of visitors would intensify the impact of the development, causing further harm. Whilst the proposed soft landscaping would provide additional screening the development would remain visible above and through the hedges and between the trees when viewed from the adjacent roads, the bridge and the surrounding countryside.

47. I agree that when the proposed soft landscaping scheme for the bridge and the A30 is completed and matures, it will help to screen the appeal site from the bridge, the A30 and beyond. However, there would continue to be intermittent views over the top of the appeal site from the bridge and in particular the appeal site would be prominent when exiting the bridge and accessing the lane. There would also be glimpses of the cabins and the site as a whole from the access and over and through the hedges, particularly during the winter months.
48. The reintroduction of a hedgerow to divide the land would reflect the historic field pattern of the site and the local area. This together with the proposed wetland area and tree planting would soften the appearance of the site when viewed from the lane and the B3288. Notwithstanding this, for the reasons set out above the proposal as a whole would unacceptably detract from the historic landscape.
49. For these reasons, although the proposal would not impact on the listed buildings or park and their immediate settings, it would erode and have an insensitive and suburbanising impact on the strong historic agricultural and industrial rural landscape. It would also be totally out of character, scale and context with the adjacent hamlet of Marazanvose.
50. I acknowledge that the newly constructed bridge and the adjacent upgraded A30 Trunk Road both appear stark. Together with the existing pylon line and large solar farms they are visually intrusive and detract from the rural character and appearance of their surroundings. As indicated above, the harsh visual impact of the MGB and adjacent stretch of the A30 trunk road should soften when the highway's soft landscaping scheme is fully implemented and matures. They will also deliver biodiversity gains. Notwithstanding this, they will continue to have a negative and urbanising impact on the surrounding countryside due to their presence, appearance and the noise generated by their use.
51. Despite this, they deliver necessary infrastructure and energy which by nature require specific rural locations. Their existence is not a good reason to justify a development that does not require a specific location in the countryside. Although the proposed lodges would make use of the existing infrastructure on the appeal site, a locational or business need for the proposed development to be in this specific location has not been demonstrated.
52. The appeal decision in Connor Downs referred to by the appellant relates to a mobile caravan and camping site and so is not comparable to the appeal proposal. They have a more temporary transitional character that is quite distinct from permanent holiday lodge sites.
53. The appeal decision at Condurrow was for a touring caravan site. Few details are provided regarding its size, although the site was already used for the siting of up to five touring caravans and the decision states that the traffic generated by the

proposal would not be significant. Also, that the site was well located close to mining trails that would be attractive and reduce reliance on motor vehicles during some of the year. Without details of the precise size of the caravan site; what facilities would be provided; the proximity and range of visitor attractions, shops and other facilities it is difficult to draw comparisons. It does however reflect the need to consider a range of factors when assessing accessibility and sustainability.

54. The council has referred to an appeal decision near Truro. Although it relates to holiday lodges the scale of the proposal was more modest and the circumstances of the proposal were quite different to the current proposal. Despite this it indicates the importance placed on the siting of such facilities in relation to shops and other facilities when dealing with permanent holiday accommodation.
55. Collectively these decisions highlight the need to assess each proposal on its individual merits and in accordance with the prevailing planning policies.
56. Overall, I find that the proposal would materially harm the distinctive character and beauty of the local landscape; would have an uncharacteristic urbanising impact on the appeal site; and is not sustainably located for the proposal. This harm is not something that could be satisfactorily addressed through the imposition of conditions.
57. For these reasons, although the proposal makes the most of the existing and proposed transport infrastructure, it would not enable good accessibility for different users. It would have an uncharacteristic urbanising effect on the appeal site and would cause material harm to the character and appearance of the surrounding rural area. It would fail to comply with CLP Policy 5 and objectives 2, 9 & 10, DPD Policies C1 & T1 and Policies S5, E4a, E4b & DP3 of the Framework.

Other matters and planning balance

58. I have carefully considered the concerns raised in relation to noise generated by the proposed use and from the A30; and foul water drainage, although they add little to my findings on the main issue. The drainage issues raised by National Highways could be satisfactorily dealt with by condition. Property values are not a planning matter.
59. I note that no concerns have been raised regarding vehicular highway safety and that the appellant has made the relevant payment relating to the Fal and Helford SAC. Matters relating to sustainable construction and the implementation of the proposed soft landscaping could be secured through the imposition of conditions. These matters all attract neutral weight.
60. The proposed wildlife strip adjacent to the B3288 and the proposed hedges, trees and grass areas would deliver a good level of biodiversity net gains. They would also complement the green link function of the bridge. This is consistent with the requirements set out in DPD Policies G1, G2, G3 and 23, which deal with biodiversity and green infrastructure.
61. Against this, having regard to the scale of the proposed development it could well result in disturbance from people vehicles and pets which would have a negative impact of the use of the MGB for wildlife. Similarly, as stated by the council's ecologist the proposal could also have a negative impact on foraging and commuting bats. The measures suggested by the ecologist to address other

potential threats to wildlife could be satisfactorily addressed by condition. Overall, on the basis of the evidence submitted I find that the proposed ecological benefits would be outweighed by the identified harm.

62. It has not been demonstrated that the requirements of the DCO are no longer applicable. If complied with the restoration scheme would also deliver a green link and biodiversity net gains with no disbenefits. Further, the land would be reinstated as grassland, which is an appropriate use for the whole site. As a result, the appeal site would make a valuable contribution to the character and appearance of this historic landscape.
63. Both the Framework and the development plan actively support commercial developments including tourism due to their economic benefits. The direct and indirect employment opportunities that would result from the proposed tourist accommodation both during and post construction are a benefit of the scheme. As well as economic benefits it would help deliver social benefits for the wider community. In accordance with policy E2 of the Framework this is a benefit to which I give substantial weight.
64. Collectively, Policies L2 & L3 of the Framework seek to make full and effective use of land and achieving appropriate densities. Substantial weight should be given to the benefits where a development would achieve remediating degraded land and making better use of vacant land. CLP Policy 21 is consistent with this.
65. The proposal would make full use of the site and it would be intensely developed, although having regard to the location of the site and the environmental harm it would cause the proposal would fail to achieve an effective use. Due to the size and nature of the use it could result in disturbance for local residents and those using the adjacent lanes and bridge. Accordingly, this is a matter to which I give little weight.
66. Cornwall Council is currently unable to demonstrate a deliverable 5-Year supply of housing land. Policy S5 j of the Framework states that development which would address an evidenced unmet need and comply with criterion i & ii should be approved. That is unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. The proposal does not comply with criteria i in relation to housing and whilst holiday accommodation and facilities are supported in Cornwall an unmet need has not been demonstrated. Therefore, I give no weight to this factor.
67. The proposal would have an uncharacteristic, inappropriate and urbanising impact on the appeal site and its immediate setting. It would be seen as encroaching into the open countryside and would materially detract from the rural character, appearance and beauty of the surrounding rural landscape. It would also exacerbate the harm caused by the existing highway and energy infrastructure. For these reasons it would fail to achieve sustainable development. Accordingly, and as required by Policy DP3 of the Framework I give substantial weight to these factors.
68. Overall, the benefits of the proposal would be substantially outweighed by the harm that would be caused by the proposal, when assessed against the national

decision-making policies in the Framework and the relevant development plan policies.

69. As stated in Policy S5 of the Framework in applying this policy, where the benefits of approving a development are likely to be substantially outweighed by adverse effects include, but are not restricted to, where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances. Policy DP3 states that proposals should be refused if they conflict with various criteria, including Policy DP3 1 & 2.d.

Conclusion

70. The proposal would conflict with the development plan and the policies set out in the Framework. This conflict is not outweighed by other material considerations. Therefore, for the reasons given above and taking into account all other matters raised, I conclude that the Appeal should be dismissed.

Elizabeth Lawrence

INSPECTOR